the Virginia statute, which singles out speech of a particular content and seeks to prevent its dissemination completely. Pp. 770–771.

(d) No claim is made that the prohibited prescription drug advertisements are false, misleading, or propose illegal transactions, and a State may not suppress the dissemination of concededly truthful information about entirely lawful activity, fearful of that information's effect upon its disseminators and its recipients. Pp. 771–773.

373 F. Supp. 683, affirmed.

BLACKMUN, J., delivered the opinion of the Court, in which BURGER, C. J., and BRENNAN, STEWART, WHITE, MARSHALL, and POWELL, JJ., joined. BURGER, C. J., *post*, p. 773, and STEWART, J., *post*, p. 775, filed concurring opinions. REHNQUIST, J., filed a dissenting opinion, *post*, p. 781. STEVENS, J., took no part in the consideration or decision of the case.

Anthony F. Troy, Chief Deputy Attorney General of Virginia, argued the cause for appellants. With him on the brief were *Andrew P. Miller*, Attorney General, and *D. Patrick Lacy, Jr.*, Deputy Attorney General.

Alan B. Morrison argued the cause and filed a brief for appellees.*

MR. JUSTICE BLACKMUN delivered the opinion of the Court.

The plaintiff-appellees in this case attack, as violative of the First and Fourteenth Amendments,[1] that portion of § 54–524.35 of Va. Code Ann. (1974), which provides that a pharmacist licensed in Virginia is guilty of unpro-

*Briefs of *amici curiae* urging affirmance were filed by *Alfred Miller* and *Stephen L. Solomon* for the American Association of Retired Persons et al.; by *Gilbert H. Weil, Philip B. Kurland*, and *Alan L. Unikel* for the Association of National Advertisers, Inc.; and by *Harold Rosenwald* for Osco Drug, Inc.

[1] The First Amendment is applicable to the States through the Due Process Clause of the Fourteenth Amendment. See, *e. g.*, *Bigelow* v. *Virginia*, 421 U. S. 809, 811 (1975); *Schneider* v. *State*, 308 U. S. 147, 160 (1939).